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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
PHILLIPS, SPALLAS & ANGSTADT LLP;  
PRIYA D. NAVARATNASINGHAM;  
ALBERTO REYNA;  
MICHAEL R. CHAMBERS;  
CARBONE, SMITH & KOYAMA;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**

**MEMORANDUM OF POINTS AND  
AUTHORITIES IN SUPPORT OF  
MOTION FOR LEAVE TO FILE  
SECOND AMENDED COMPLAINT**

**Date:**  
**Time:**  
**Dept.:**  
**Judge:**  
**Reservation No.:**

May 12, 2026  
9:00 a.m.  
301

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# **I. INTRODUCTION AND SUMMARY OF ARGUMENT**

## **I.A. INTRODUCTION — WHY THIS AMENDMENT MATTERS**

This motion seeks leave to file a Second Amended Complaint (“SAC”) to conform the pleadings to a certified record that proves a fraud was perpetrated upon the Court. At the heart of this action is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

**Record sequence relevant to leave 1. The Court’s articulated reliance on defense representations (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7):** > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

**2. Related pretrial and trial rulings (January–April 2025):** The certified record reflects the following rulings and orders (among others) occurring in the same general timeframe: \* **MIL No. 1 denied** (Jan. 27, p. 41:3–11). \* **911 CDs excluded** (Jan. 27, p. 38:22–25). \* **Continuance denied** (Feb. 18, p. 181). \* **Burden allocation ruling** (Feb. 28, p. 293:1–3).

**3. Subsequent representation on the record regarding provenance (RT 7, Apr. 16, 2025, p. 213, ll. 13–15):** > “Sure. They were provided by Dolan. He has had them for whatever, sure.” The proposed amendment aligns the pleading with this record sequence and the theories pleaded in the Second Amended Complaint, including extrinsic fraud and related claims, for the Court’s consideration on the motion for leave to amend.

## **I.B. SUMMARY OF ARGUMENT**

The SAC accurately reflects newly discovered facts regarding the underlying 2025 trial and streamlines the equitable fraud claims. The proposed amendments do not alter the core grievance—that the underlying judgment was procured through extrinsic fraud—but rather conform the pleadings to the April 16, 2025 admission by defense counsel regarding the origins of critical evidence,

1 specify the timeline of the institutional file transfer, and formally add agency allegations against  
2 the institutional principal, CSAA Insurance Exchange.

3 California policy strongly favors the resolution of disputes on their merits and dictates great liber-  
4 ality in allowing amendments to pleadings at any stage of the proceeding. Code of Civil Procedure  
5 sections 473(a)(1) and 576 empower the Court to grant leave to amend, and California Rules of  
6 Court, rule 3.1324 the procedural mechanism. Because this action is in its infancy and no trial date  
7 is set, the amendments will cause no prejudice to Defendants. Good cause exists to grant leave  
8 under Rule 3.1324.

## 9 **II. PROCEDURAL BACKGROUND**

10 Plaintiff filed the initial Complaint in this independent equitable action on December 23, 2025.  
11 Following initial procedural steps, Plaintiff filed a First Amended Complaint (FAC) to structure  
12 the fraud and deceit claims against the defense counsel and institutional parties involved in the  
13 underlying case (Rosario v. Abdelhalim, Case No. CGC-21-594102).

14 The underlying action involved a substitution of counsel filed on May 4, 2023, transitioning the  
15 defense from Carbone, Smith & Koyama, LLP (CSK) to Phillips, Spallas & Angstadt, LLP (PSA).  
16 The present case challenges conduct relating to the transmission of the defense file and represen-  
17 tations made to the tribunal during January through April 2025.

18 Plaintiff now seeks leave to file a Second Amended Complaint to incorporate precise evidentiary  
19 admissions made on the record during the underlying trial—specifically the April 16, 2025 “pro-  
20 vided by Dolan” admission—and to clarify the estoppel, agency, and extrinsic-fraud mechanisms.

## 21 **III. LEGAL STANDARD FOR LEAVE TO AMEND**

22 Code of Civil Procedure section 473(a)(1) provides that the court may, in furtherance of justice,  
23 and on any terms as may be proper, allow a party to amend any pleading. Code of Civil Proce-  
24 dure section 576 states that any judge, at any time before or after commencement of trial, in the  
25 furtherance of justice, and upon such terms as may be proper, may allow the amendment of any  
26 pleading.

27 California courts apply a policy of “great liberality” in allowing amendments to pleadings at any  
28 stage of the proceeding so that cases may be justly resolved on their merits. (Mabie v. Hyatt (1998))

61 Cal.App.4th 581, 596; Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Absent prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will apply. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

California Rules of Court, rule 3.1324 requires that a motion to amend be accompanied by a declaration specifying: 1. The effect of the amendment (rule 3.1324(b)(1)); 2. Why the amendment is necessary and proper (rule 3.1324(b)(2)); 3. When the facts giving rise to the amended allegations were discovered (rule 3.1324(b)(3)); and 4. The reasons why the request for amendment was not made earlier (rule 3.1324(b)(4)).

The moving party must also state what allegations are proposed to be added or deleted and where they are located. (Rule 3.1324(a)(2)–(3).)

#### **IV. THE PROPOSED AMENDMENTS SATISFY CRC 3.1324(A)**

The proposed Second Amended Complaint restructures and refines the allegations. The amendments specifically: 1. **Add specific pre-adjudicative concealment allegations:** Incorporating the 883-day silence window and the May 4, 2023 substitution file-transfer omission (SAC ¶¶ 29–39). 2. **Incorporate the April 16, 2025 admission:** Adding the specific transcript reference to Navaratnasingham’s “provided by Dolan” admission (SAC ¶¶ 58–63). 3. **Add CSAA agency allegations:** Specifying CSAA Insurance Exchange’s role in directing, funding, and ratifying the litigation conduct outside the normal insurer role (SAC ¶¶ 48–57). 4. **Refine doctrinal framing:** Adding express estoppel by silence (Evid. Code § 623), authentication by acquiescence (Evid. Code § 1414(b)), and extrinsic-fraud jurisdictional footing (SAC ¶¶ 103–113). 5. **Add Count 7 (constructive fraud) and refine Count 4:** The proposed SAC adds a Seventh Cause of Action for constructive fraud under Civ. Code § 1573 (Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415), pleaded in the alternative to Counts 2 and 3, and retitles the Fourth Cause to include civil conspiracy as a **joint-liability theory** attaching to underlying torts under Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503 (not a freestanding conspiracy tort).

These changes do not alter the fundamental nature of the dispute but rather conform the pleading to the precise evidentiary timeline of the underlying case, ensuring the Court can adjudicate the

1 actual controversy.

## 2 **V. GOOD CAUSE UNDER CRC 3.1324(B)**

3 Plaintiff has established good cause for the amendment through the concurrently filed Declaration  
4 of Franciscus Dylan Rosario, which details: \* **When facts were discovered:** The facts underlying  
5 the extrinsic fraud materialized primarily between January 17, 2025 (when the Motions in Limine  
6 were filed) and April 16, 2025 (the Day 7 admission). The **February 28, 2025** hearing supplied  
7 the express officer-of-the-court reliance ruling (Hr’g Tr. pp. 291:26–292:7) that anchors the duty-  
8 of-candor element of constructive fraud (Civ. Code § 1573) pleaded in Count 7. The April 16  
9 admission pairs with that ruling as the record proof that reliance was misplaced. The necessity  
10 of specifying the agency role of CSAA and the precise mechanics of the file transfer became  
11 clear through continued record review and legal research post-filing. \* **Why the request was not**  
12 **made earlier:** The original and First Amended Complaints were filed promptly to preserve rights.  
13 The detailed transcript parsing and doctrinal framing required to accurately plead an independent  
14 equitable action under Kougasian v. TMSL, Inc. required the time intervening since the last  
15 pleading to properly synthesize. \* **Necessity:** The amendments are necessary to provide the Court  
16 with the correct factual chronology (including the 883-day silence window) and to ensure that the  
17 pleading squarely addresses the elements of extrinsic fraud and agency liability.

## 18 **VI. NO PREJUDICE TO DEFENDANTS**

19 There is no prejudice to Defendants in allowing this amendment. The case was filed on December  
20 23, 2025, and remains in its early stages. No trial date has been set, discovery has not closed, and  
21 the amendments do not inject a radically new set of facts that would require defense counsel to  
22 conduct a vastly different factual investigation. The core facts—what was said and done during the  
23 underlying case—remain identical. Denying leave to amend would only force Plaintiff to rely on  
24 a less accurate pleading, contravening the policy of resolving cases on their merits.

## 25 **VII. CONCLUSION**

26 For the foregoing reasons, Plaintiff respectfully requests that the Court grant the Motion for Leave  
27 to File the Second Amended Complaint.

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Dated: April 19, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario".

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